

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



February 13, 2019

The Honorable Gary Nadler
Judge of the Superior Court
County of Sonoma
600 Administration Drive
Santa Rosa, CA 95403

Re: Michael Delongis
CDCR No: V12863
Case No: SCR 32538
Date of Sentence: October 30, 2003

Dear Honorable Gary Nadler:

The purpose of this letter is to recommend a recall of sentence and resentence for, inmate Michael Delongis, pursuant to Penal Code (PC) Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Delongis is a 55-year-old first term offender received from Sonoma County on November 6, 2003, pursuant to a conviction for PC 187 (a), Murder 2nd degree, and for PC 273 (a), Corporal Injury to Spouse, enhanced with a PC 12022.7 (a) Bodily Harm Inflicted during Commission of a Felony. Inmate Delongis was sentenced to 23 years to life in Case Number SCR 32538. Inmate Delongis has a Minimum Eligible Parole Date of February 15, 2023. There are no active or potential holds, warrants, or detainers and no indication Delongis is associated with any Security Threat Groups at this time.

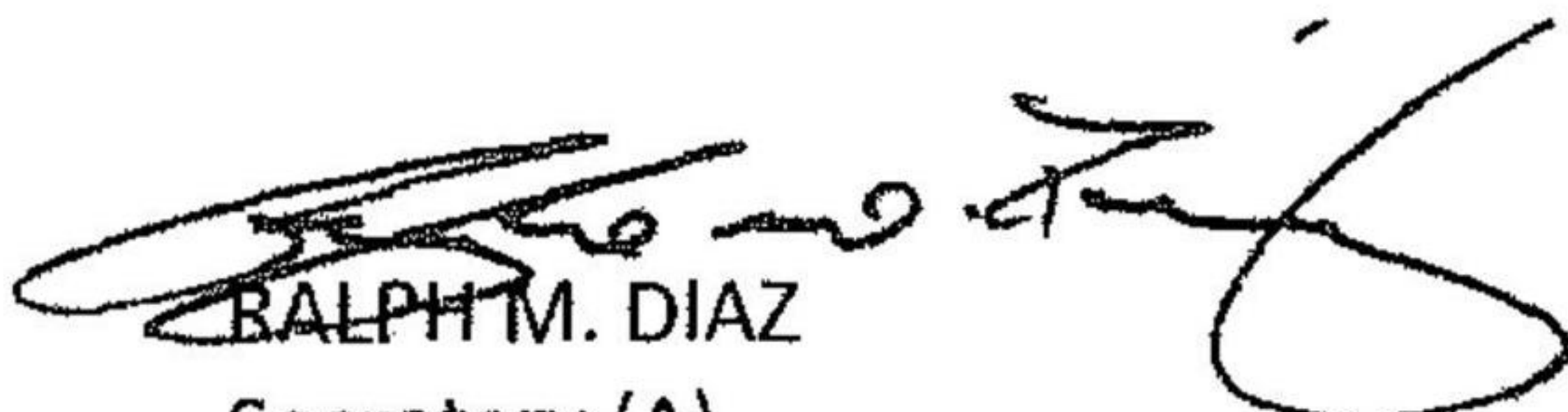
Inmate Delongis has remained disciplinary free since his arrival to the California Department of Corrections and Rehabilitation on November 6, 2003. Inmate Delongis' offense appears to be the result of his alcohol dependency and a review of his file shows he has taken advantage of various programs to help overcome his addiction, including Narcotics Anonymous, Alcoholics Anonymous, Substance Abuse Recovery, and Re-entry programs. Inmate Delongis has also taken full advantage of opportunities to assist him into a successful transition back into society. Inmate Delongis is currently assigned to Victim Impact and works as a Blind Project Worker. Inmate Delongis is also certified as a United States Library of Congress Literary Braille Transcriber.

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Having reviewed the enclosed documentation, it appears that inmate Delongis' sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Arlene D. Junior, County Court Executive Officer
Sonoma County District Attorney's Office
Sonoma County Public Defender's Office